

Andhra Pradesh Agricultural University Act, 1963

Source: <https://indiankanoon.org/doc/100585343/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

94

]

State of Andhra Pradesh - Act

Andhra Pradesh Agricultural University Act, 1963

ANDHRA PRADESH

India

Andhra Pradesh Agricultural University Act, 1963

Act 24 of 1963

Published on 27 December 1963

Commenced on 27 December 1963

[This is the version of this document as it was from 29 April 2017 to None.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

Andhra Pradesh Agricultural University (Amendment) Act, 1992 (Act 9 of 1992)

on

15 April 1992

]

Acharya N.G. Ranga Agricultural University Act, 1963

(Act No. 24 of 1963)

Last Updated 27th January, 2020

The following Act of the Andhra Pradesh Legislature received the assent of the Governor on the 27th December, 1963, and the said assent is hereby first published on the 30th December, 1963, in the Andhra Pradesh Gazette for general information.

[An Act to provide for the establishment and incorporation of a teaching and affiliating university in Agricultural Sciences in the State of Andhra Pradesh and for the matters connected therewith or incidental thereto.]

[Substituted by Act No. 11 of 2017, dated 29.4.2017.]

Be it enacted by the Legislature of the State of Andhra Pradesh in the Fourteenth Year of the Republic of India as follows:

Chapter I

Preliminary

1.

Short title, extent and commencement.

- This Act maybe called the Acharya N. G. Ranga Agricultural University, 1963.

(2)

It extends to the whole of the State of Andhra Pradesh.

(3)

[It shall come into force on such date as the Government may, by notification in the Andhra Pradesh Gazette, appoint.]

[Came into force on 4-5-1964 notified in Gazette extra ord. G.O.Ms.No. 1277/F & A Date 28-4-1964.]

2.

Definition.

- In this Act, unless the context otherwise requires, -

(a)

"Academic Council" means the Academic Council of the University as per the ordinance No.3 of 2016;

(aa)

["affiliated college/educational institution" means a college/ educational institution affiliated to the university providing courses of study qualifying students for admission to university examinations in accordance with the Regulations;]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(b)

"Agriculture" includes the basic and applied sciences dealing with soil and water management, crop production, horticulture, agricultural engineering and technology, marketing, processing cooperation, farm forestry, land reforms, land management and betterment of the rural people;

(c)

"appointed day" means the date appointed under sub-section (3) of section I for the coming into force of this Act;

(d)

"Authority" means any Authority of the University specified in section 1g.

(e)

"Board" means the Board of Management of the University;

(ea)

["college" means a college established and maintained by, or affiliated to, or recognized by the University;]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(t)

"Faculty" means a Faculty of the University;

(g)

"Government" means the State Government;

(ga)

["institution" means an institution offering academic programmes or research in Agricultural Sciences, Agricultural Engineering & Technology and Home Science or any other course as may be prescribed by the authorities as defined in the Act and includes a Polytechnic;]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(h)

"Officer" means any officer of the University specified in section 9;

(ha)

["polytechnic" means a polytechnic offering courses under Agricultural Sciences, Seed Technology, Agricultural Engineering & Technology and Home Science or any other course as may be prescribed by the authorities, as defined

in the Act;]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(i)

"Prescribed" - means prescribed by the statutes;

(ia)

["recognized college or recognized institution" means a college or institution, as the case may be, recognized by the University under the conditions prescribed;]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(j)

"Registrar" means the Registrar of the University;

(k)

"Registered graduate" includes a graduate in agriculture registered under conditions prescribed in this behalf;

(l)

"Statutes" and "Regulations" respectively mean the statutes and regulations of the University made under this Act;

(m)

"Student" includes a person enrolled in the University for taking a course of study for a degree, diploma or other academic distinction duly instituted, or for undergoing any training;

(n)

"Teacher" includes a professor, reader, lecturer or other person appointed or recognised by the University for the purpose of imparting instruction or conducting and guiding research or extension programmes, and any person declared by the statutes to be a teacher;

(o)

"University" means the Andhra Pradesh Agricultural University con situated under Section 3;

(p)

"University College" means a college established or maintained by the University and providing courses of study qualifying students for admission to the University examinations in accordance with the regulations.

Chapter 1

.1 The University

3.

The University.

(1)

There shall be constituted in, and for, the State of Andhra Pradesh a University by the name of the Andhra Pradesh Agricultural University, which shall consist of a Chancellor, a Vice- Chancellor, a Board of Management and an Academic Council.

(1A)

[the University shall be a teaching, research,extension and affiliating University.]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by said name.

(3)

In all suits and other legal proceedings by or against the university, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on, him.

(4)

The headquarters of the University shall be at Rajendra nagar in the Hyderabad district and it may extend to any place within a contiguous area of five miles around it.

4.

Objects of the University.

- The objects of the University, among others, shall be make provision for the education mainly of the rural people of the State of Andhra Pradesh in agriculture and to promote research, field and extension programmes in agriculture and agricultural production [and to streamline the Agriculture Education, affiliate, recognize the College imparting Agricultural

Sciences, Agricultural Engineering & Technology and Home Science Education.]

[Added by Act No. 11 of 2017, dated 29.4.2017.]

5.

University open to all Persons.

- The University shall, subject to the provisions of this Act and the statutes, be open to all persons; but nothing in this section shall be deemed to require the University to admit to any course of study a large number of students than may be prescribed.

Provided that the Government may reserve seats in colleges -under the University for members of the socially and educationally backward classes, the Scheduled Castes and the Scheduled Tribes in accordance with such principles as may, from time to time, be determined by the Government in this behalf.

6.

Powers and functions of the University.

- The University shall have the following powers and functions namely:

(a)

to provide for instructions, training and research in agriculture;

(aa)

[to affiliate or recognise Colleges of Agriculture, Agricultural Engineering, Food Science & Technology and Home Science or Polytechnics and to withdraw such affiliation or recognition in the manner as may be prescribed.]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(b)

to provide for the advancement and dissemination of knowledge in the field and extension programmes in agriculture;

(c)

to institute courses of study and to hold examinations for, and to confer, degrees, diplomas and other academic distinctions on persons who have pursued a course of study or carried on research in the University or in an institution recognised in this behalf by the University, as may be prescribed;

(ca)

[to institute courses of study and to hold examinations for, and to confer diplomas to the Private Polytechnics in Agriculture, Seed Technology, Agriculture Engineering, Food Science & Technology and Home Science or any other course as may be prescribed by the authorities, affiliated by the University;

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(cb)

to institute courses of study and to hold examination for, and to confer Post Graduate/ Under Graduate degree to the Private Colleges in Agriculture, Agricultural Engineering, Food Science & Technology and Home Science or any other course as may be prescribed by the authorities, affiliated by the University.]

(d)

to confer honorary degrees or other academic distinctions, as may be prescribed;

(e)

to create teaching, research and extension posts required by the University and to appoint qualified persons to such posts;

(f)

to institute and award fellowships including travelling fellowships, scholarships, studentships and prizes in accordance with the statutes;

(g)

to acquire, hold and dispose of property, and to contract and to do all other things necessary for, or incidental to, the purposes of the University;

(h)

to take over and maintain colleges relating to agriculture and hostels therefore;

(i)

to borrow money from the Government of India, any State Government or any other agency;

(j)

to establish and maintain the University colleges and hostels therefor;

(k)

to fix, demand and receive such fees and other charges as may be prescribed;

(l)

to provide such lectures and instructions for and to grant such diplomas to, field workers, and other persons, as the University may determine;

(m)

to regulate the conduct of students, to maintain discipline among them and to make arrangements for promoting their health and welfare;

(n)

to create administrative, ministerial and other necessary posts and to make appointments; thereto;

(o)

to cooperate with other Universities and authorities in such manner and for such purposes, as the University may determine; and

(p)

to do all such acts and things, as may be necessary for the furtherance of the objects of the University.

7.

Residence.

- Every student shall reside in a hostel, or under such conditions as may be prescribed.

8.

Visitation.

(1)

The Government shall have the right to cause an inspection to visitation be made by such person or authority, as they may direct, of the affairs and properties of the University or any college or institution maintained [or affiliated or recognised]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

by the University, and to cause an inquiry to be made in respect of any matter connected therewith.

(2)

[Before causing such an inspection or inquiry, intimation thereof shall be given to the University, which shall be entitled to have its nominee or nominees at such inspection or inquiry and to make representations in regard thereto.]

[As Amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No.50 of 1976).]

(3)

The Government shall forward to the Board a copy of the report of inspection or inquiry for expressing its views and on receipt thereof, they may tender such advice or give such direction as they may consider necessary, and fix a time limit for action to be taken by the Board in that regard. The Board shall, within the time so fixed, take necessary action and report the fact to the Government

Chapter III

Officers Of The University

9.

Officers of the University.

- The following shall be the officers of the University namely;

(i)

The Chancellor;

(ii)

The Vice-Chancellor;

(iii)

The Registrar;

(iv)

The Comptroller;

(v)

The Dean of Student Affairs;

(vi)

The Deang of the various Faculties;

(vii)

The Director of Agricultural Experiment Stations;

(viii)

The Director of Extension; and

(ix)

Such other persons in the service of the University as may be prescribed.

10.

The Chancellor.

- The Governor of Andhra Pradesh shall be the Chancellor of the University He shall , by virtue of his office, be the head of the University, and shall, when present, preside at any convocation of the University. He shall exercise such other powers as may be conferred on him by or under this Act.

11.

The Vice-Chancellor.

(1)

The Vice-Chancellor shall be a whole time officer and shall be appointed by the Chancellor. He shall be paid a salary of three thousand rupees per mensem inclusive of pension, if any.

(2)

[The Vice-Chancellor shall hold office for a term of three years and shall be eligible for reappointment for another term of three years.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(3)

[The conditions of service other than the emoluments of the Vice - Chancellor shall be such as may be prescribed and shall not be varied to his disadvantage after his appointment.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(4)

The Vice-Chancellor may, by writing under his hand address send to the Chancellor, resign his office. The resignation shall be delivered to the Chancellor ordinary sixty days prior to the date on which the Vice-Chancellor wishes to be relieved of his office, but the Chancellor may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Vice-Chancellor on leave, for whatever reason, or until the vacancy caused in any other manner is filled, the Chancellor shall appoint any person temporarily to act as Vice-Chancellor.

(6)

[Where the post of the Vice-Chancellor falls permanently vacant either by resignation or otherwise, the vacancy shall be filled by the Chancellor in accordance with the provisions of sub-section (1) and the Vice-Chancellor so appointed shall hold office for a full term of three years.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(7)

[If, in the opinion of the Chancellor, the Vice-Chancellor will fully omits or refused to carry out the provisions of this Act or abuses the powers vested in him and i f it appears to the Chancellor that the continuance of the Vice- Chancellor in office is detrimental to the interests of the university, the Chancellor may by order, remove the Vice-Chancellor, after giving him an opportunity of showing cause against the action proposed to be taken in regard to him.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

12.

Powers Vice-Chancellor.

(1)

The Vice-Chancellor shall be the academic head and principal and duties of executive officer of the University and shall, in the the absence of the Chancellor , preside at any convocation of the University.

(2)

It shall be the duty of the Vice-Chancellor to ensure the faithful observance of the provisions of this Act and the statutes and he may exercise all powers necessary for this purpose.

(3)

The Vice-Chancellor shall have power to convene the meetings of the Academic Council.

(4)

The Vice-Chancellor shall exercise general control over the University and its affairs and shall be responsible for the due maintenance of discipline in the University.

(5)

The Vice-Chancellor shall be responsible for the presentation of the budget and the statement of accounts to the Board.

(6)

Subject to the control of the Chancellor, in any emergency, which in the opinion of the Vice-Chancellor, requires, immediate action to be taken, he shall take such action as he deems necessary, and shall at the earliest opportunity intimate the action taken to the officer, authority or other body who or which in the ordinary course would have dealt with the matter.

(7)

Where any action taken by the Vice-Chancellor under sub-section (6) affects any person in service of the University to his disadvantage, such person may prefer an appeal to the Board within thirty days from the date on which such person has notice of the action taken.

(8)

[The Vice-Chancellor shall give effect to the decisions of the authorities of the university taken in accordance with the powers conferred by or under this Act.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(9)

The Vice-Chancellor shall be responsible for a close coordination and integration of teaching, research, and extension.

(10)

The Vice-Chancellor shall exercise such other powers as may be prescribed.

13.

The Registrar.

(1)

The Registrar shall be a whole-time officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Registrar and the conditions of service shall be such as may be prescribed: Provided that the conditions of service of the Registrar shall not be varied to his disadvantage after his appointment.

(3)

The Registrar shall be responsible for the due custody of the records and the common seal of the University. He shall be ex-officio Secretary of the Board and of the Academic Council, and shall be bound to give before it all such information as may be necessary for the transaction of its business. He shall receive applications for entrance to the University and shall keep a permanent record of all courses, curricula and other information as may be necessary.

(4)

The Registrar may, by writing under his hand addressed to the Board, resign his office. The resignation shall be delivered to the Board ordinarily sixty days prior to the date on which the Registrar wishes to be relieved of his office, but the Board may relieve him earlier. The resignation shall take effect from the date of relief.

(5)

In the temporary absence of the Registrar on leave, for whatever reason, or until the vacancy caused in any other manner is filled, the Vice-Chancellor shall appoint any person temporarily for a period not exceeding three months, to act as the Registrar.

(6)

The Registrar shall be responsible for the conduct of the examinations and for the due execution of all processes connected therewith.

(7)

The Registrar shall discharge such other duties and perform such other functions as may be prescribed or required, from time to time, by the Board or the Vice-Chancellor.

14.

The Comptroller.

(1)

The Comptroller shall be a whole-time officer and shall be appointed by the Board in the manner prescribed.

(2)

He shall be paid such salary and allowances as may be prescribed.

(3)

The provisions relating to conditions of service other than emoluments, resignation, filling of temporary vacancies contained in sub-sections (3), (4) and (5) of section 11 shall apply to the office of the Comptroller subject to the variation that for the expressions "Vice-Chancellor and Chancellor", the expressions "Comptroller" and "Board" shall respectively be substituted.

(4)

The Comptroller shall manage the property and the investments of the University and tender advice in regard to its financial policy. He shall be responsible for the preparation of the budget and statement of accounts for presentation to the Vice-Chancellor.

(5)

The Comptroller shall be responsible for ensuring that no expenditure not duly authorised is incurred by the University otherwise than by way of investment and shall disallow any expenditure which may contravene the terms of any statute or for which provision is required to be made by the statutes but has not been made.

15.

Powers and duties of the Registrar and Comptroller The exercisable by a single person.

- The Board may direct that the powers and duties of the Registrar and the Comptroller shall be exercised and performed by a single person for such period as it deems fit.

16.

Dean of Student Affairs.

(1)

The Dean of Student Affairs shall be a whole-time Officer and shall be appointed by the Board in the manner prescribed.

(2)

The salary and allowances payable to the Dean of Student Affairs shall be as prescribed.

(3)

The Dean of Student Affairs shall have the following duties, namely:

(a)

to make arrangements for the housing of students ;

(b)

to arrange a programme of student counselling;

(c)

to arrange for the employment of students in accordance with the plans approved by the Vice-Chancellor.

(d)

to supervise the extra-curricular activities and to look after the needs of students;

(e)

to assist in the placement of graduates of the University;

(f)

to organise and maintain contact with the alumni of the University.

17.

Officers not to accept any remuneration from any source other than that provided by statutes.

- No Officer shall accept any remuneration from any source other than the remuneration to which he is entitled under the statutes.

Chapter IV

Authorities Of The University

18.

Authorities of the University.

- The following shall be the Authorities of the University, namely:

- (i)
the Board of Management ,
- (ii)
the Academic Council,
- (iii)
the Boards of Faculties, and
- (iv)
such other bodies as may be prescribed.

19.

Vice-Chancellor.

(1)

The Chancellor shall, as soon as may be after the first is appointed under sub-section (1) of section II, take action to constitute the Board.

(2)

[The Board shall consist of the following members, namely :-

Ex-officio Members

(a)

the Vice-Chancellor

(b)

the Secretary to Government, Panchayat Raj Department

(c)

the Director of Agriculture

(d)

the Director of Animal Husbandry.

Other Members

(e)

One person to be nominated by the Chancellor from the members of the Indian Council of Agricultural Research.

(f)

One person, who is in the opinion of the Chancellor a distinguished agricultural scientist, nominated by the Chancellor.

(g)

Three persons from the Academic Council to be nominated by the Chancellor.

(h)

Four person's to be nominated by the Chancellor from among the members of the State Legislature and the members of parliament elected from the State of Andhra Pradesh.

(i)

Two persons nominated by the Chancellor from amongst the progressive agriculturists of whom one shall be a woman.

(j)

One person nominated by the Chancellor from amongst the members of the State Chamber of Panchayat.]

(3)

[The Vice-Chancellor shall be ex-officio Chairman of the Board, and shall conduct the meetings of the Board in accordance with the statutes made in that behalf.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(4)

[The term of office of members of the board other than ex-officio members shall be three years.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

Provided that no member of the board who is nominated shall continue to be a member of the Board on his ceasing to hold the office by virtue of which he has been nominated as member of the Board.

(5)

The members of the Board shall be entitled to receive such daily and travelling allowances as may be prescribed but not to any remuneration.

20.

Powers and function of the Board.

(1)

The Board shall exercise and perform the following powers and functions, namely: -

(a)

to approve the budget of the University presented by the Vice - Chancellor,

(b)

[to appoint the teachers of the University and such other employees of the University as may be prescribed on the recommendation of the selection committee constituted under section 32.

[As Amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

Provided that the Board may invite any person of high academic distinction and professional attainments to accept a post of professor in the university and appoint him to that post.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(c)

to acquire any property for the University and hold or dispose of its properties.

(d)

to accept any property on behalf of the University.

(e)

to provide for the administration of any funds placed at the disposal of the University for the purposes intended.

(f)

to arrange for the investment and withdrawal of money of the University.

(g)

to direct the form and use of the common seal of the University.

(h)

to appoint such committees, either standing or temporary, as the Board may consider necessary.

(i)

to determine and regulate all policies relating to the affairs of the University in accordance with this Act and the statutes.

(j)

[to affiliate or recognise colleges/educational Institutions of Agriculture, Agricultural Engineering, Food Science & Technology and Home Science or any other course as may be prescribed by the authorities, including conditional affiliation or recognition of the colleges or educational institutions and to withdraw such affiliation or recognition on the recommendation of the Academic Council.]

[Inserted by Act No. 11 of 2017, dated 29.4.2017.]

(2)

The Board shall meet at such time and place as it deems necessary but it shall hold a meeting at least once in every two months, and not less than half of the number of its meetings in a year shall be held at the headquarters of the University.

(3)

The Board may, for purposes of consultation, invite any person having practical experience or special knowledge of any subject under its consideration to attend its meeting. Such person shall have right to speak in, and otherwise to take part in the proceedings of such meeting, but shall not by virtue of this sub-section, be entitled to vote any such meeting. A person attending any such meeting shall be entitled to such allowances as may be prescribed.

21.

Academic Council.

(1)

The Academic Council shall consist of the following members, the namely: -

(a)

the Vice -Chancellor of the University;

(b)

the Vice-Chancellors of the Andhra University, the Osmania University and Sri Venkateswara University;

(c)

the Director of Agriculture;

(d)

the Director of Animal Husbandry;

(e)

[the Director of Agricultural Experiment Stations;]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(f)

[the Dean of the Indian Veterinary Research Institute;]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(g)

the Deans of the various Faculties;

(h)

the Dean of Student Affairs;

(i)

the Heads of Departments of the various Faculties; 0) the Professors of the University; and

(k)

[the Principals of the University colleges;]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(l)

two members of the Board referred to in clauses (e) and (f) of sub-section (2) of section 19;]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(m)

[four persons nominated by the Vice-Chancellor of whom two shall be from amongst the teachers for such period as may be prescribed.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(2)

The Academic Council may co-opt as members not more than ten persons, for such period and in such manner, as may be prescribed so as to secure adequate representation of different aspects of apiculture.

(3)

The Vice-Chancellor shall be ex-officio Chairman of the Academic Council.

22.

Powers, functions and duties of the Academic Council.

(1)

The Academic Council shall be in charge of the academic affairs of the University and shall, subject to the provisions of this Act and the statutes, superintend, direct and control, and responsible for, the maintenance of standards of instruction, education and examinations and other matters connected with the obtaining of degrees and shall exercise such other powers, perform such other functions and discharge such other duties as may be laid down by or under this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, the Academic Council shall be entitled to -

(a)

advise the Vice-Chancellor and the Board on all academic matters including the control and management of the libraries;

(b)

make recommendations to the Board-

(i)

for the institution of the professorships, associate professorships, assistant professorships, teacher ships and other teaching posts and matters connected therewith;

(ii)

regarding the post-graduate teaching, research and extension;

(iii)

[for the grant of affiliation or recognition or withdrawal of such affiliation or recognition of colleges/education institutions.]

[Added by Act No. 11 of 2017, dated 29.4.2017.]

(c)

formulate, modify, revise or rescind schemes in connection with the constitution or reconstitution of departments of teaching, research and extension, and

(d)

[make regulations.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(i)

regarding the admission of students to the university;

(ii)

regarding the examinations and the conditions on which students shall be admitted thereto;

(iii)

relating to courses of study for degrees, diplomas and certificates.

23.

Faculties.

(1)

The University shall include the Faculties of Agriculture, Veterinary Science, Home Science and such other Faculties as may be prescribed.

(2)

Each Faculty shall comprise such departments with such assignment of subjects of study as may be prescribed.

(3)

There shall be a Board of each Faculty, the constitution and powers of which shall be prescribed.

(4)

[There shall be a Dean for each Faculty who shall be appointed in such manner and for such period, as may be prescribed.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 50 of 1976).]

(5)

the Dean shall be the Chairman of the Board of the Faculty and be responsible for the faithful observance of the statutes and regulations relating to the Faculty and for the organisation and conduct of the teaching, research and extension work of the departments comprised therein.

(6)

Each department shall have a head whose appointment, powers and duties shall be as prescribed, and who shall be responsible to the Dean for the proper organisation and working of the department.

24.

Constitution of Committees.

- Every Authority shall have power to appoint committees which may, unless otherwise provided in this Act, consist of the members of the Authority and such other persons as it may think fit.

25.

Filling of casual Vacancies.

- Any casual vacancy among the members, other than ex-officio members, of any Authority shall be filled, as soon as conveniently may be, by the person, or authority who appointed, elected; nominated or coopted the member whose place has become vacant and the person appointed, elected or coopted to a casual vacancy shall be a member of such authority for the residue of the term for which the person whose place he fills would have been a member.

26.

Removal from membership of an Authority.

- The Board shall remove any person from membership of any Authority on the ground that such person was convicted of an offence involving moral turpitude.

27.

Decision on question as to validity of membership, act or proceeding.

- Where any question arises whether a person has been duly elected or appointed as, or is entitled to be, a member of an Authority other than the Board or whether any act or proceeding of an Authority including the Board is consistent with

this Act and the statutes, it shall be referred to the Chancellor whose decision thereon shall be final.

28.

Act or proceeding of an Authority not to be invalidated by reason only of certain defects.

- No act or proceeding of an authority shall be deemed invalid by reason only, of any defect in the constitution of such Authority, of the existence of any vacancy among its members, or of the invalidity of the election of any of its members.

Chapter V

Research And Extension

29.

Agricultural Experiment Stations.

(1)

The University may establish and maintain one or more Agriculture Experiment Stations for research, both fundamental and applied in all Faculties, in addition to the maintenance of institutions which stand transferred to the University under sub-section (3) of section (43). The Board shall appoint, in the manner prescribed, a person who had training in agriculture as the Director of Agricultural Experiment Stations. The Director shall initiate, guide and coordinate all agricultural research and be responsible for the efficient working of such stations.

(2)

The University may, at any time, with the approval of the Government close down, either permanently or temporarily, any of the Agricultural Experiment Station specified in sub-section (1).

30.

Agriculture and Home Science Extension Service.

(1)

The University shall establish in Agricultural and Home Science Extension Service for the purposes of—

(a)

undertaking extension programmes on a phased programme covering the entire State of Andhra Pradesh in such manner as may be determined by the Government in consultation with Board.

(b)

dissemination of information for solution of problems relating to agriculture and domestic fields.

(c)

establishment of youth clubs for developing the interests of young people in agriculture, and

(d)

such other purposes as may be prescribed.

(2)

The Board shall appoint in the manner prescribed a person who had training in agriculture as Director of Agricultural and Home Science Extension Service. He shall be responsible for dissemination of such information and planning and execution of a programme of extension work based upon the results of research.

31.

Coordination in research and extension work.

- The Government shall endeavour to secure proper coordination between the departments of the Government and the University in the conduct of research and extension work and may tender necessary advice to the Board in that regard.

Chapter VI

Appointments of Teachers Etc.

32.

Constitution of a Selection Committee for appointment of officers and teachers of a Faculty.

(1)

The Board shall appoint a Selection Committee for each Faculty which shall consist of the following persons namely: -

(i)

the Vice-Chancellor who shall be ex-officio Chairman of the Committee.

(ii)

the Dean of the Faculty concerned -

(iii)

One person outside the University having special knowledge of the subject of the Faculty, nominated by the Board.

(2)

The teachers of a Faculty shall be appointed by the Board on the recommendation of the Selection Committee of that Faculty and their remuneration and other conditions of service shall be such as may be prescribed.

33.

Constitution of pension, insurance or provident fund.

(1)

The University shall constitute, for the benefit of its officers, teachers, clerical staff and other employees in such manner and subject to such conditions as may be prescribed, such pension, insurance and provident fund as it may deem fit.

(2)

Where any such pension, insurance or provident fund has been so constituted by the University, the Government may declare that the provisions of the Provident Funds Act, 1925 shall apply to such funds as if it were a Government Provident Fund.

Provided that the University shall have power in consultation with the Finance Committee, to invest the Provident Fund amount in such manner as it may determine.

34.

Tribunal of Arbitration for disputes between the University and its staff.

- Any dispute arising out of a contract between the University and any officer or teacher of the University shall, on the request of the officer or teacher concerned or at the instance of the Board, be referred to a Tribunal of Arbitration consisting of one member nominated by the Board, one member nominated by the officer or teacher concerned, and an umpire appointed by the Chancellor. The decision of the Tribunal shall be final.

Chapter VII

University Funds, Etc.

35.

General And Other Funds.

(1)

The income from fees real issued by, any contribution and endowment received by, and all grants made to, the other funds University, shall form one general fund to be called the "General Fund of the University" and all money so realised and received shall be credited to it.

(2)

The University may have such other funds and shall maintain such accounts in respect of every fund as may be prescribed.

35A.

[Borrowing of Money.

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 3 of 1977).]

- The University may accept moneys from the Government of India, the State Government, the University Grants Commission and also borrow money from a Bank or a Corporation for the purposes of the University;

Provided that where the University intends to borrow money from a Bank or a Corporation or Both exceeding an amount of fifty thousand rupees at a time or in the aggregate, it shall obtain the prior written approval of the Government thereof.]

35B.

[Certain Restrictions In Respect Of Financial Matters.

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1976 (Act No. 3 of 1977).]

- The University shall not divert earmarked funds or other purposes, or revise the scales of pay of its staff or implement any scheme which involves any matching contribution from the Government or which imposes a recurring liability on the Government after the assistance from the sponsoring authority ceases without the prior written approval of the Government.

Provided that the Finance Committee may authorise the creation and filling up of posts of teachers for a period not exceeding one year, but any such post shall not be continued or created afresh for any period beyond the said period of one year without the prior written approval of the Government.]

36.

Finance Committee.

(1)

The Board shall constitute a Finance Committee consisting of the following persons namely: -

(a)

the Vice-Chancellor

(b)

[Omitted]

[As amended by the Andhra Pradesh Agricultural University (Amendment) Act, 1976 (Act No. 80 of 1976).]

(c)

the Comptroller

(d)

two members chosen by the Board from among its members.

(2)

The finance committee shall have the following powers and duties, namely:

(a)

to examine the accounts of the University and its annual budget estimates and to advise the Board in respect thereof;

(b)

to review the financial position of the University from time to time; and

(c)

to make recommendations to the Board on all proposals involving expenditure, for which no provision or inadequate provision has been made in the budget, or in excess of the budget provision.

37.

Accounts and Audit.

(1)

The annual accounts shall be submitted by the Board to the Government who shall cause an audit to be made by such persons as the Government may appoint in this behalf.

(2)

The accounts when audited shall be printed and copies thereof shall, together with the copies of the audit report, be submitted by the Board to the Government with its comments. The Government shall cause the audit report together with the comments of the Board to be laid before each House of the State Legislature.

Chapter VIII

Statutes And Regulations

38.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely: -

(a)

the constitution, powers and duties of the Authorities;

(b)

the powers, functions, duties and conditions of service of the officers other than the Chancellor;

(c)

the methods of election in respect of the Authorities and the manner of resolving the disputes in respect thereof;

(d)

the procedure at meetings of such Authorities including the quorum for the transaction of business by them;

(e)

the designation, manner of appointment, powers and duties of the officers;

(f)

the classification and manner of appointment of teachers;

(g)

the holding of convocations to confer degrees and diplomas;

(h)

the conferment of honorary degrees and academic distinctions;

(i)

the establishment, amalgamation, subdivision and abolition of Faculties;

(J)

the establishment of departments of teaching in the faculties;

(k)

the establishment and abolition of hostels maintained by the University;

(l)

the institution of fellowships, scholarships, studentships, bursaries, medals and prizes and the conditions of award thereof;

(m)

the conditions of registration of graduates and the maintenance of register thereof;

(n)

the entrance or admission of students to the University and their enrolment and continuance as such;

(o)

the courses of study to be laid down for all degrees and diplomas of the University;

(p)

the conditions under which students shall be admitted- to the degree diploma or other courses and to the examinations of the University and shall be eligible for the award of degrees and diplomas;

(q)

the conditions of residence of the students of the University and the levying of fees for residence in hostels maintained by the University;

(r)

the fees which may be charged by the University connected therewith;

(s)

the conditions and mode of appointment and the duties of examining bodies and examiners;

(t)

the conduct of examinations;

(u)

the conditions of service, remuneration and allowances, including travelling and daily allowances, to be paid to officers, teachers and other persons employed under the University and

(v)

all other matters necessary for carrying out all or any of the purposes of the Act.

39.

Statutes how made.

(1)

The first statutes with regard to matters set out in clauses (a) to (m) of section 38 shall be made by the Government.

(2)

subject to the prior approval of the Government, the Board may, from time to time, make any statute in addition to the first statutes referred to in subsection (1), and may amend or repeal any statute in the manner herein after provided it, this section.

(3)

The Academic Council may propose to the Board the draft of any statute to be made by the Board and such draft shall be considered by the Board at its next meeting.

Provided that the Academic Council shall not propose the draft of any such statute, any amendment of a statute or repeal of a statute affecting the statute, powers are constitution of any existing authority until such Authority has been given an opportunity to express its views on such proposal and any views so expressed shall be considered by the Board.

(4)

The Board may consider any such draft as is referred to in sub-section (3) and make the statute or reject it or return it to the Academic Council for reconsideration, either in whole or part, together with any amendments which it may suggest.

(5)

Any member of the Board may propose to it the draft of any statute, any, amendment of a statute or repeal of a statute

and the Board may either accept or reject the proposal if it relates to a matter not falling within the purview of the Academic Council. In case such draft relates to a matter within the purview of the Academic Council, the Board shall refer it for consideration to the Academic Council, which may either report to the Board that it does not approve the proposal, which shall then be deemed to have been rejected by the Board, or forward such draft to the Board in such form as the Academic Council may approve, and the provisions of this section shall apply in the case of a draft so forwarded as they apply in the case of a draft proposed to the Board by the Academic Council.

(6)

Every first statute made under sub-section (1) shall immediately after it is made, be laid before each House of the State Legislature if it is in session and if it is not in session in the session immediately following, for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the statute or in the annulment of the statute, the statute shall thereafter have effect only in such modified form or shall stand annulled, as the case may be; so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under the statute.

40.

Regulations.

(1)

The Authorities may make regulations consistent with this Act and the statutes for all or any other matters which by this Act and the statutes are to be provided for by the regulations, and also for any other matter solely concerning such Authorities and not so provided.

(2)

Every Authority shall make regulations providing for the giving of notice to the members of such Authority of the dates of meeting and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Board may direct the amendment, in such manner as it may specify, of any regulation made under this section or the annulment of any regulation made thereunder by any Authority.

(4)

The Academic Council, may, subject to the provisions of the statutes, make regulations providing for courses of study for the various examinations, degrees and diplomas of the University after receiving drafts of such regulations from the Board of Faculty concerned.

(5)

The Academic Council shall not amend a draft of a regulation received from the Board of a Faculty but may reject it or return it to the Board of Faculty for reconsideration either in whole or in part together with any amendment which it may suggest.

(6)

[affiliation or recognition including conditional affiliation or recognition of colleges and polytechnics and withdrawal of such affiliation and for all other matters necessary for carrying out all or any of the purposes of the Act.]

[Added by Act No. 11 of 2017, dated 29.4.2017.]

Chapter LX

Miscellaneous

41.

Annual Report.

- The annual report of the University shall be prepared under the direction of the Vice-Chancellor and submitted by the Board to the Government one month before the annual meeting at which it is to be considered.

42.

temporary appointment of officers.

- Notwithstanding anything in this Act, and until such time as the authorities are duly constituted, the Vice -Chancellor may, subject to the prior approval of the Chancellor, appoint any officer or constitute any Committee temporarily to exercise, perform and discharge all or any of the powers, functions and duties of such Authorities under Act.

43.

Powers of Government To Transfer Certain Colleges and Institutions To The University.

(1)

Notwithstanding anything in the Andhra University Act, 1925, Sri Venkateswara University Act, 1954 and the Osmania University Act, 1959 or the Statutes made thereunder, the Agricultural College, Bapatla, Sri Venkateswara Agricultural College, Tirupati the Andhra University College, Tirupati To the University and the College of Home Science, Hyderabad, shall, * as from the date notified in the Andhra Pradesh Gazette by the Government in this behalf be disaffiliated from the Andhra University, Sri Venkateswara University or the Osmania University as the case may be, and shall be maintained by the University as University Colleges.

(2)

Notwithstanding anything in the Osmania University Act, 1959 or the statutes made thereunder, the College of Agriculture at Rajendra nagar and the University College of Veterinary Science and Animal Husbandry at Hyderabad shall, * as from the date notified by the Government under subsection , cease to be the Constituent College and the University College respectively of the Osmania University and be maintained by the University as University Colleges.

(3)

The control and management of the colleges specified in sub -section (1) shall, as from the date notified by the Government under the sub-section stand transferred to the University and all the properties and assets, and liabilities and obligations of the Government in relation thereto shall stand transferred to, vest in, or devolve upon, the University.

(4)

The control and management of the colleges specified in sub -section (2) shall *as from the date notified by the Government under sub-section (1), stand transferred to the University and all the properties and assets, and liabilities and obligations, of the Osmania University in relation thereto shall, subject to subsection (5), stand transferred to, vest in, or devolve upon, the University.

(5)

The compensation payable by the University to the Osmania University 7 respect of the transfer and vesting of the properties and assets, and the devolution of liabilities and obligations, under sub-section (4) shall be such, as may be agreed upon between the two Universities. In default of such agreement, the compensation shall be determined by the Government after giving opportunity to the two Universities of making their representations in that regard and the decision of the Government in the matter shall be final.

(6)

[Notwithstanding any thing in this Act, but subject to the provisions of sub-section(6-A), where the control and management of any college has been transferred to the university under sub-section (3) or sub-section (4), the University shall employ all teachers and other employees of the Government or the Osmania University as the case may be, who immediately before the date notified by the Government under sub-section (1), were serving in or were attached to that college, on such foreign service conditions as may be determined by the Government in the case of a Government employee or by the Osmania University in the case of an employee of that University. Provided that no deputation or any other allowance shall be payable to any such employee.

Provided further that all the teachers and the other employees of the Government or the Osmania University, as the case may be who are serving the University on the date of commencement of the Andhra Pradesh Agricultural University (Amendment) Act, 1974, shall be deemed to have been employed by the University under this sub-section.]

[As amended by the Andhra Pradesh Agricultural University (Amendment) Act , 1971 (Act No. 18 of 1974).]

[(6-A) Notwithstanding anything in sub-section (6), every such teacher or other employee of the Government or the Osmania University, as the case may be shall, within a period of two months from the date of commencement of the Andhra Pradesh Agricultural University (Amendment) Act, 1974, exercise his opinion to revert to the service under the Government or the Osmania University, as the case may be, to which he belongs, failing which he shall be deemed to have been absorbed in the service of the University with effect from the date notified by the Government under sub-section (1) and shall from the said date, be governed by the terms and conditions governing the said service:

Provided that-

(i)

the terms and conditions offered by the University to such teachers and other employees consequent on their absorption in the service of the University shall not be less favourable than those applicable to such teachers and other employees.

(a)

immediately before the date notified by the Government under subsection (1), as respects remuneration, leave, pension, gratuity and provident fund.

(b)

immediately before the date of commencement of the Andhra Pradesh Agricultural University (Amendment) Act, 1974, as respects the age of super-annuation.

(ii)

the service rendered by any such teacher or other employee under the Government or the Osmania University as the case may be, upto the date notified as aforesaid shall be deemed to be service under the University and he shall be entitled to count that service for the purpose of increments, leave, pension or provident fund and gratuity.]

[(6-B) Notwithstanding anything in sub-section (6-A) every such teacher or other employee who had exercised his option within a period of two months from the date of commencement of the Andhra Pradesh Agricultural University (Amendment) Act, 1974, to revert to the service under the Government or the Osmania University, as the case may be, to which he belongs, shall be given an opportunity to exercise a revised Option within a period of two months, or such other period beyond two months as may be specified by the Government from the date of commencement of the Andhra Pradesh Agricultural University (Amendment) Ordinance, 1976.]

[As amended by the Andhra Pradesh Agricultural University (Amendment) Act, 1976 (Act No.18 of 1976).]

[(6-C) In exercise of the powers conferred by sub-section (6-B) of section 43 of the Andhra Pradesh Agricultural University Act, 1963 (Act 24 of 1963) as amended by Act 9 of 1992, every teacher or other employee who has exercised his revised option under sub-section (6-B) of the said section to revert to the service under the Government or Osmania University as the case may be to which he belongs, but has not been reverted in pursuance of such Option the Governor of Andhra Pradesh hereby appoints the 31st October, 1993 as the last date within which the transferred the aforesaid employees may exercise their Revised option.]

[As amended by the Andhra Pradesh Agricultural University Amendment) Act, 1992 (Act No. 18 of 1992).]

(7)

Notwithstanding anything in this Act or the statutes made thereunder, any student of the University College, who was studying in 2nd year for any examination of the Andhra Pradesh University, Sri Venkateswara University or the Osmania University shall be permitted to complete his course in preparation therefor, and the University shall make arrangements for holding for such students examinations for such period as may be prescribed, in accordance with curricula of studies of the Andhra Pradesh University, Sri Venkateswara University or the Osmania University, as the case may be.

(8)

The Government shall by order direct that all the institutions under the control and management of the Government conducting research in the subject of agriculture or animal husbandry shall be maintained by the University, with effect from such date or dates as may be specified in the order which shall in any case be before the expiration of three years from the appointed day. The control and management of such institution shall thereupon stand transferred to the University and all the properties and assets and liabilities and obligations, of the Government in relation thereto shall stand transferred to, vest in, or devolve upon, the University.

[The provisions contained in sub-section (6) and (6-A) shall, mutatis mutandis, apply in respect of the teachers and other employees of the Government who immediately before such transfer were serving in or attached to that institution.]

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1974 (Act No.50 of 1974).]

44.

[

[As amended by the Andhra Pradesh Agricultural University (Second Amendment) Act, 1974 (Act No.50 of 1974).]

The Board may by statutes made in this behalf, delegate to any officer or authority of the University any of the powers conferred on it by or under this Act, to be exercised by such officer or authority, subject to such restrictions and conditions as may be specified in such statutes.

Notwithstanding anything in the Principal Act.

(a)

the members of the Board and the Academic council constituted and functioning before the commencement of this Act, shall continue to be such members and function only until a new Board or Academic Council, as the case may be is reconstituted in accordance with the provisions of the Principal Act as amended by this Act.

(b)

on the reconstitution of such new Board or Academic Council in accordance with the provisions of the Principal Act as amended by this Act, the members of the Board or Academic Council, as the case may be, holding office immediately before such reconstitution, shall cease to be such members.]

[As amended by the Andhra Pradesh Agricultural University Amendment) Act 1961 (Act No. 11 or 1964).]

Related AI tags, queries and research notes

Translation